



2026:AHC-LKO:35928-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 4619 of 2026

Ghanshyam

.....Petitioner(s)

Versus

State Of U.P. Thru. Prin. Secy. Energy Deptt. Civil
Sectt. Lko. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Ashwini Kumar, Raghvendra Verma, Rajendra Pratap Singh
Counsel for Respondent(s)	: C.S.C., Manish Jauhari

Court No. - 5

**HON'BLE ALOK MATHUR, J.
HON'BLE AMITABH KUMAR RAI, J.**

1. Heard Shri Ashwini Kumar, learned counsel for the petitioner, learned Standing Counsel for the respondent no.1 and Shri Manish Johri, learned counsel for the respondents no. 2 to 4.
2. The instant writ petition has been filed praying for a writ of certiorari quashing the order impugned dated 28.5.2025 passed by the respondent no. 3.
3. It has been submitted on behalf of petitioner that the petitioner has got electricity connections installed at his residence situated in Village Bidhar Khas, Bhidur, Tehsil Tanda, District Ambedkar Nagar and the petitioner has subsequently constructed a new house. It is regarding the old premises that the petitioner had moved an application for disconnection which was duly processed and according to the petitioner the final amount was also communicated which was Rs 1696 which he deposited and a receipt was given to him on 10.11.2016. In the said receipt it has clearly been mentioned "702/2326/014048 P.D. Final Amount".
4. It is the case of the petitioner that the electricity connection was permanently disconnected but despite the said disconnection bills were received on 2024 and prior to that from 2016 no bills were submitted by the department to the petitioner. It is in the aforesaid circumstances that the petitioner had moved an application under the Right to Information

Act before the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Ltd, Tanda Ambedkar Nagar. In response to the said application the petitioner was informed that in the meanwhile there has been various changes in the division and now the Sub Division Alapur is looking into the electricity connection of the petitioner and the records pertaining to said connection are not available.

5. Despite the aforesaid the petitioner has received an order dated 28.5.2025 by the Executive Engineer, Vidyut Vitran Khand, Allapur, District Ambedkar Nagar directing the petitioner to deposit an amount of Rs 1,66,916/- with regard to electricity connection No 0087104000. It is the case of the petitioner that once the electricity connection has been permanently disconnected then there is no occasion for directing the petitioner to deposit any amount subsequent to the said disconnection.

6. Shri Manish Johri, learned counsel for the respondents no. 2 to 4 has opposed the writ petition on the basis of instructions received from the Executive Engineer, Electricity Distribution, Alapur. He has further submits that the provisions pertaining to permanent disconnection are provided for in Clause 4.38 of the Electricity Supply Code, 2005 and provisions regarding termination of agreement are provided in Clause 4.14(g) of the Code, 2005.

7. For the sake of convenience, Clause 4.14(g) of the Code, 2005 is reproduced below:

“4.14 (g) A consumer may terminate the agreement after giving a notice in the specified format(Annexure 4.7). The notice period shall be 30 days for all consumers. Upon service of the said notice, the licensee shall arrange to take reading, disconnect the supply, remove meter, cable etc., deliver final bill including all arrears upto the date of disconnection with in 30 days from the date of said application. Upon payment, the Licensee shall issue receipt with FINAL BILL stamped on it, which shall be treated as No Dues Certificate.”

8. According to the aforesaid provisions an application has to be submitted on specified format and a 30 days period is provided during which period reading is taken and the meter has to be removed alongwith

cable and the supply has to be disconnected and bills has to be submitted which is known as final bill on which a no dues certificate has to be issued by the department.

9. It is noticed that a final bill has been issued to the petitioner which has been annexed by him dated 10.11.2016 which is a receipt of deposit of permanent disconnection and this aspect of the matter has not been denied by the respondent in as much as as per their own letter dated 9.5.2024 no records pertaining to aforesaid electricity connection are available and therefore there is no reason to doubt the authenticity of the receipt annexed by the petitioner pertaining to permanent disconnection of the petitioner.

10. We further find that the amount of Rs 1696 as mentioned in the aforesaid receipt has also been mentioned in the order impugned dated 28.5.2025 which clearly indicate that the said receipt pertaining to the connection the proceedings are which is under challenge in the present writ petition accordingly for the aforesaid reasons we find that once the permanent disconnection has already been approved final bill has already been paid in terms of clause 4.14(g) of the Code there is no reason or occasion for the respondents to issue any further bills to the petitioner.

11. We further find that merely because the records pertaining to the electricity connection of the petitioner are not available with the petitioner we see no reason as to why he be allowed to suffer and subjected to illegal billing by the Executive Engineer himself. Once it is evident that the said electricity connection stood permanent disconnected then no ground existed for assessing the consumer again and subjecting him for a payment of unusual amount.

12. We further find that no justification is forthcoming from the department as to why the application should be made in a prescribed format asking the consumer to furnish the last receipt after noticing that the said materials and documents are available with the department themselves. Any application received with regard to the disconnection the same should be processed forthwith and the electric supply has to be disconnected giving a liberty to the department to furnish a final bill to the consumer as per the last reading. Merely because the person has not

moved an application in the prescribed format or not annexed the bill or receipt should not be a ground for rejection or not proceeding to process any such application.

13. The department is under duty to frame rules which are consumer friendly and not make rules only to create obstacles and harass the consumer and make meaningless compliance running from pillar to post.

14. The application for the consumer for disconnection is clear indicator of ceasure of relation of consumer and supplier and the process should be made more simple and clear and in terms of paragraph 4.14 within 30 days the supply has to be disconnected and the reading taken so that the final bill can be submitted to the consumer who would be under duty to clear the same or if he disputes the same can be done in terms of provisions contained in the Code.

15. In view of the aforesaid, the writ petition is **allowed**. The order impugned dated 28.5.2025 passed by the respondent no. 3 i.e. Executive Engineer, Vidyut Vitran Khand, Allapur, District Ambedkar Nagar stands quashed with regard to the petitioner.

(Amitabh Kumar Rai,J.) (Alok Mathur,J.)

May 19, 2026
J. K. Dinkar